

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Suzanne Donnelly	Team: Team # 2	CCRB Case #: 200711336	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 08/03/2007 10:30 PM	Location of Incident: Stillwell Avenue, Boardwalk	18 Mo. SOL 2/3/2009	Precinct: 60
Date/Time CV Reported Mon, 08/06/2007 3:39 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 08/06/2007 3:39 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincenzo Quinzi	12560	937320	060 PCT
2. POM Joseph Flynn	01412	933782	060 PCT
3. POM Frederick Drone	01364	933760	060 PCT
4. SGT Beverly Brown	00708	917339	067 PCT
5. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Olive Houston	07542	938677	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincenzo Quinzi	Discourtesy: PO Vincenzo Quinzi spoke obscenely and/or rudely to § 87(2)(b)	A . Alleged Victim Unavailable
B . POM Vincenzo Quinzi	Discourtesy: PO Vincenzo Quinzi spoke obscenely and/or rudely to § 87(2)(b)	B . Unsubstantiated
C . POM Vincenzo Quinzi	Force: PO Vincenzo Quinzi used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Joseph Flynn	Force: PO Joseph Flynn used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Frederick Drone	Force: PO Frederick Drone used physical force against § 87(2)(b)	E . Unsubstantiated
F . Officers	Force: Officers used physical force against § 87(2)(b)	F . Officer(s) Unidentified
G . SGT Beverly Brown	Abuse: SGT Beverly Brown strip-searched § 87(2)(b)	G . Unsubstantiated

Synopsis

On August 6, 2007, § 87(2)(b) called the CCRB and filed a complaint on behalf of her daughter, § 87(2)(b) on the call processing system. On August 3, 2007 at approximately 10:30pm, § 87(2)(b) and her friends were on the Coney Island Boardwalk at Stillwell Avenue in Brooklyn when a fight broke out. Numerous police officers responded to the fight, and PO Vincenzo Quinzi, who responded to the scene, allegedly called § 87(2)(b)'s friend § 87(2)(b) (last name unknown) a "jackass" (Allegation A). § 87(2)(b) then spoke to PO Quinzi, at which point he stated, "Who the fuck do you think you are?" (Allegation B). PO Quinzi then told § 87(2)(b) she was going to be placed under arrest, at which point PO Quinzi, PO Joseph Flynn, PO Frederick Drone, and PO 4 grabbed onto § 87(2)(b) and "jumped" on her, taking her to the ground (Allegations C, D, E, and F). § 87(2)(b) was handcuffed and escorted to a patrol car. PO Flynn and PO Drone transported her to the 60th Precinct. There, Sgt. Beverly Brown allegedly strip-searched § 87(2)(b) (Allegation G). § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegation A be closed as victim unavailable. § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation B be closed as unsubstantiated. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegations C, D, and E be closed as unsubstantiated. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegation F be closed as officer(s) unidentified. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegation G be closed as unsubstantiated.

Summary of Complaint

§ 87(2)(b) (Enclosures 5A-N, 6A-VV)

§ 87(2)(b) was interviewed at the CCRB on August 14, 2007. § 87(2)(b) stated that on August 3, 2007, at approximately 10:00pm, she and her neighborhood friends § 87(2)(b) and § 87(2)(b) arrived at the boardwalk on Coney Island at Stillwell Avenue to watch other friends of theirs perform a break dancing routine. At the time of her interview, § 87(2)(b) could only provide a telephone number for § 87(2)(b) she offered to provide contact information for her other friends to the CCRB in the future. § 87(2)(b) estimated that there were approximately 75 people gathered around watching the break dancing show. At the time of the incident, § 87(2)(b) was wearing a black and yellow basketball uniform and was carrying a book bag, which contained her basketball sneakers. § 87(2)(b) and her friends watched the show for approximately 15 minutes before a physical altercation broke out between two males who were in the crowd that was watching the show. § 87(2)(b) did not see the males utilizing any weapons, and she was not certain but she believed that the officers were in the area and did not hear anyone call 911. Within two to three minutes (10:15pm), approximately 50-60 officers in uniform responded to the location. § 87(2)(b) observed mostly male officers but stated that there were some females, and she saw them arrive both on foot and in marked patrol cars. She did not believe there were any plainclothes officers at the scene. § 87(2)(b) could not clearly see the fight or see the officers breaking up the fight, given that the break dancing show was still going on and a crowd was still present. § 87(2)(b) could not describe the officers that broke up the fight, but she believed that the arrests went smoothly and the males were apprehended quickly. She saw them in custody being escorted to a patrol car.

Once the fight was over and the situation was under control, the officers began leaving the boardwalk. The dance show also concluded and the crowd of onlookers began dispersing. As the officers walked away from the location, § 87(2)(b) began singing, "Y'all can't mess with the police." PO Quinzi and PO 2 approached § 87(2)(b) and PO Quinzi asked, "Why you gotta be a jackass?" § 87(2)(b) obtained PO Quinzi's name later at the 60th Precinct, when it was provided to her by a female seated at the desk. She

described PO Quinzi as a short, stocky white male in uniform, with light brown or green eyes, and approximately 30 years old. She described PO 2, who has been identified as PO Joseph Flynn, as a skinny white male in a uniform, approximately 5'8, with dark spiky hair, approximately 25 years old. When PO Quinzi said this to § 87(2)(b) he got close to him; § 87(2)(b) did not respond to PO Quinzi's question and looked scared. § 87(2)(b) asked PO Quinzi why he called § 87(2)(b) a jackass, and stated that § 87(2)(b) had not done anything wrong. PO Quinzi responded, "Who the fuck do you think you are?" § 87(2)(b) told PO Quinzi, "I'm Missy, who do you think you are?" § 87(2)(b) explained during her CCRB interview that her nickname is Missy. She added that she did not yell at PO Quinzi but her tone was admittedly "angry." PO Quinzi then told § 87(2)(b) that she was under arrest for disorderly conduct. He did not give her any verbal directions, but he reached toward § 87(2)(b) who told him that she "wasn't going anywhere." Because § 87(2)(b) stepped away from PO Quinzi, he did not make physical contact with her at this time. PO Quinzi walked toward § 87(2)(b) and grabbed onto her right arm. He did not use a particularly forceful grip at this point – he was intending on placing § 87(2)(b) into handcuffs.

At this point PO 3 and PO 4 saw what was going on and approached PO Quinzi and § 87(2)(b). PO 3 has been identified through the investigation as PO Frederick Drone, but PO 4 was unable to be identified. § 87(2)(b) described PO Drone as a tall, thin white male in a uniform, with a bald head and wearing glasses, who appeared to be approximately 37 years old. PO 4 was a male whom § 87(2)(b) could not describe any further. PO Quinzi then took § 87(2)(b)'s left arm, and was pulling § 87(2)(b)'s arms behind her back in an attempt to handcuff her. During this time, § 87(2)(b) was pulling away from PO Quinzi and was reaching for her cell phone to call her father, because she knew she had done nothing wrong. She was not screaming and did not attempt to strike PO Quinzi during this time. As this was taking place, PO Flynn, PO Drone, and PO 4, who seemingly saw what was going on, came toward PO Quinzi and § 87(2)(b) and "jumped on" her. § 87(2)(b) believed a total of four officers had physical contact with her; her friends told her "thirty" officers were involved, but she is sure they were exaggerating. Initially, § 87(2)(b) stated that she lost her balance when the additional officers ran toward her and as PO Quinzi was trying to handcuff her. When describing the situation again, § 87(2)(b) stated that she felt a push from behind, and as a result, she fell face-down onto the ground. § 87(2)(b) fell flat onto the ground, hitting her head, which began bleeding. At the time of her CCRB interview, a scrape on the left side of § 87(2)(b)'s forehead was still visible. § 87(2)(b) stated that she also had scrapes on her wrists from the handcuffs, but these were the only injuries she sustained.

On the ground, § 87(2)(b) felt what she believed to be an officer's knee on her head near her ear. She stated that the force from this caused her earring to bend, which was painful. She did not know which officer had his knee on her head. § 87(2)(b) estimated that once she was down on the ground, it took the officers about two minutes to handcuff her. The officers were primarily trying to restrain § 87(2)(b)'s arms at this time, and as a result, her shirt ripped. When asked if she was resisting, § 87(2)(b) stated that she already had her cell phone in her right hand and she was still trying to call her father on her cell phone as PO Quinzi was trying to place her in handcuffs. At this time, § 87(2)(b) dropped her cell phone and asked § 87(2)(b) to call her parents. § 87(2)(b) believed that PO Quinzi was the officer who actually handcuffed her. PO Quinzi then picked § 87(2)(b) up from off the ground. PO Flynn and PO Drone escorted § 87(2)(b) to a marked patrol car and transported her to the 60th Precinct. § 87(2)(b) believed that PO Flynn was driving the vehicle. § 87(2)(b) was not transported with any other prisoners.

Upon arriving at the precinct, § 87(2)(b) was brought before the desk sergeant, PO 6, a white male in a uniform, and was placed into a juvenile room. When she arrived there, she saw that her father, § 87(2)(b), was already at the stationhouse. After a few minutes, PO 5, whom § 87(2)(b) identified during a photo array as Sgt. Beverly Brown, escorted § 87(2)(b) to a bathroom in the stationhouse, which was to the left of the juvenile room, and removed her handcuffs. § 87(2)(b) described Sgt. Brown as a black female in a uniform, approximately 5'8, with a long dark ponytail who appeared to be 30 years old. Sgt. Brown instructed § 87(2)(b) to lift up her shirt and bra completely and expose her breasts, remove her pants and her underwear, and squat. Sgt. Brown also searched inside § 87(2)(b)'s book bag, which was still on her back and remained on her back during the arrest. She did not remove anything from § 87(2)(b)'s book bag. Sgt. Brown had no physical contact with § 87(2)(b) during the search. There were no additional officers in the bathroom with § 87(2)(b) and Sgt. Brown during this search and the door was closed. The search took approximately 5 minutes. Sgt. Brown then handcuffed § 87(2)(b) again and

brought her back to the juvenile room. She was handcuffed to a pole and waited there for her father for an estimated 45 minutes. PO 7, a black male in a uniform with short curly hair, approximately 6'0 and 35 years old, was stationed in the juvenile room. He and PO 8, a white male in a uniform, approximately 6'2, 45 years old whom § 87(2)(b) believed may have been a sergeant, informed § 87(2)(b) that § 87(2)(b) was arrested because he would not leave the front of the precinct. § 87(2)(b) did not witness her father's arrest and did not see her interact with any police officers.

§ 87(2)(b) received a summons and was released 45 minutes later. § 87(2)(b) was released at the same time and was not charged with anything. She never saw EMS at the stationhouse. She stated that her head was bleeding but no one cleaned her wound. On § 87(2)(b) § 87(2)(b) went to § 87(2)(b) emergency room with her parents to obtain treatment for her injuries. § 87(2)(b)

The following day at approximately 2pm, § 87(2)(b) went back to the 60th Precinct with her mother and her father to obtain the police report for her arrest, at which time they were informed that there was no report prepared for her arrest. § 87(2)(b) was informed by a female officer at the desk that PO Quinzi was her arresting officer.

§ 87(2)(b) provided photos that were taken of her injuries after she was released for her CCRB interview dated August 3, 2007. One of the photographs documented § 87(2)(b)'s ripped jersey, which ripped as the officers picked her up off the ground. § 87(2)(b) also had a copy of her father's summons with her at the time of her CCRB interview, which was summons # § 87(2)(b) issued for § 87(2)(b). Additional photographs of § 87(2)(b)'s injury were taken, and a copy of § 87(2)(b)'s summons was obtained.

On January 23, 2008, the investigator conducted a photo array with § 87(2)(b) at her home at § 87(2)(b) in Brooklyn, NY. The first photo array was composed of all of the black and Hispanic female officers on the tour 3 roll call for August 3, 2007 and the tour 1 roll call for August 4, 2007, as § 87(2)(b) was brought to the 60th Precinct around the time of a tour change. Filler photos were also included. Photo array #1 is composed of the following: # 1: PO Zoya Lucas; #2: Filler; #3: PO Nury Ibarra; #4: Filler; #5: PO Aml Eslokary; #6: Sgt. Beverly Brown; #7: PO Denise James; #8: PO Olive Houston; #9: Filler; #10: PO Tanisha Abddeen. During Array # 1, § 87(2)(b) recognized the officer in photo # 6, Sgt. Beverly Brown, as the officer who strip-searched her at the 60th Precinct following her arrest. § 87(2)(b) stated that the officer in photo #6 appeared to have a lighter complexion in the photo, but she remembered the officer's face, specifically her large lips. She was confident in her choice.

Photo arrays #2 through #5 were of all of the white male officers on the tour 3 roll call for August 3, 2007 assigned as summer detail, stadium detail, and sector patrol. Filler photos were also included. The arrays were organized as follows: Array # 2: Photo #1: PO Jason Platt; #2: Filler; #3: PO Anthony Contessa; #4: PO John D'Amato; #5: PO Angelo Rubano; #6: Filler; #7: PO Peter Ballentine; #8: Filler; #9: PO William Fair. Array #3: Photo #1: Sgt. Angelo Russo; #2: PO Eric Jensen; #3: PO Joseph Longo; #4: Filler; #5: PO Scott Forster; #6: Filler; #7: PO Anthony Bruno; #8: Filler; #9: PO Matthew Hathaway. Array #4: Photo #1: Filler; #2: PO Rustam Mukhutdinov; #3: Filler; #4: PO Joseph Flynn; #5: PO Frederick Drone; #6: PO Scott Walicki; #7: Filler; #8: PO Christopher Furegno; #9: Filler. Array #5: Photo #1: PO Christopher Kirchoff; #2: Filler; #3: PO Artur Sadowski; #4: Filler; #5: PO Michael Eichner; #6: Filler; #7: PO Vincenzo Quinzi; #8: Filler; #9: PO Daniel O'Connell.

In arrays #2-5, § 87(2)(b) only recognized the officers in array # 4, photos #4 and 5, which are PO Flynn and PO Drone. § 87(2)(b) recalled that these were the officers who transported her to the 60th Precinct. § 87(2)(b) could not say whether these officers had any role in actually arresting her on the boardwalk or had any physical contact with her, she explained, because she was face-down on the ground and could not see the officers. § 87(2)(b) did not recognize any of the other officers in the arrays, but she was certain of the two officers she identified.

Results of Investigation

Witness Interviews

§ 87(2)(b) (Enclosures 7A-F)

§ 87(2)(b) was interviewed at the CCRB on August 14, 2007. On August 3, 2007, at approximately 10:30pm, § 87(2)(b) received a phone call from a friend of his daughter, § 87(2)(b) s friend § 87(2)(b) was not sure which friend) informed § 87(2)(b) that § 87(2)(b) had been arrested. § 87(2)(b) reported to the 60th Precinct alone at approximately 10:45pm. Standing outside already were his son, § 87(2)(b) and his son's friend (name unknown). Upon entering the precinct, § 87(2)(b) saw § 87(2)(b) standing in a line in front of the desk. She was in handcuffs at this time, and § 87(2)(b) observed that § 87(2)(b) s clothes were ripped and left side of her head and face was bleeding. § 87(2)(b) asked several officers in the precinct who "beat up" his daughter and why she was in handcuffs. PO 1, a white male in uniform, told § 87(2)(b) to step outside. § 87(2)(b) admittedly very upset, told PO 1 that was his § 87(2)(b) year-old daughter and again asked why she was bleeding. A couple more officers approached § 87(2)(b) and § 87(2)(b) believed that they were going to try to forcibly remove him from the precinct. § 87(2)(b) backed up and exited the stationhouse.

Several officers, including PO 2, a white male in uniform with blond spiky hair, walked outside after § 87(2)(b). § 87(2)(b) identified PO 2 as PO Flynn by reading the name off his shield. PO Flynn seemed like he was trying to "intimidate" § 87(2)(b) and PO 3, a muscular black male in a uniform, approximately 34 year old, told PO Flynn, "I got this," and said that he was handling the situation. § 87(2)(b) believed that the officers were trying to "egg" him on so that they would have some reason to grab him. Another officer approached § 87(2)(b) and stated that he would be "handling" the situation. § 87(2)(b) told this officer that he did not want any officer to handle it, and he just needed to know the name of the officer who "beat my daughter." PO Flynn slammed the door and asked § 87(2)(b) "You want my badge number, you want my name?" PO Flynn then read out his information to § 87(2)(b). § 87(2)(b) informed PO Flynn that he did not need his information. A couple of minutes later, PO 4, an Asian male with black hair in uniform, came outside and requested § 87(2)(b) s identification. PO 4 brought § 87(2)(b) back inside the precinct to a Lieutenant, who told § 87(2)(b) that his daughter would be released in about 5 minutes and he could remain there and wait for her or he could go back outside.

§ 87(2)(b) proceeded to walk back outside to inform the rest of his family members and individuals who had gathered at the precinct to inform them that § 87(2)(b) had gotten arrested and would be released shortly. § 87(2)(b) stated that his brother-in-law and a few other family members had arrived at the scene. At this point, it was almost midnight. Several officers began arriving at the precinct, § 87(2)(b) assumed, because of a tour change. One officer emerged from within the precinct and told § 87(2)(b) and the other individuals outside that he wanted everyone gone from in front of the precinct and wanted them across the street. He added that he did not want any individuals standing near the police cars parked outside. § 87(2)(b) stated to the CCRB that no one was acting disorderly and everyone was "calm and collected." Everyone dispersed except for § 87(2)(b) PO 5, whom § 87(2)(b) did not describe but identified as PO "Pinnisi," which was documented on § 87(2)(b) s summons, told him, "I'm talking to you." § 87(2)(b) explained to PO Pinnisi that the Lieutenant had permitted him to wait there for his daughter. PO Pinnisi told § 87(2)(b) that he did not care who he was waiting for and instructed him to, "Move." § 87(2)(b) stated that he would go back inside, and PO Pinnisi told him that he could not and ordered him to go across the street. § 87(2)(b) again refused to move, and PO Pinnisi told § 87(2)(b) that he was being placed under arrest. § 87(2)(b) told PO Pinnisi, "That's your prerogative." PO Pinnisi grabbed onto § 87(2)(b) placed him up against the glass in between the front doors to the precinct. § 87(2)(b) stood there with both hands in the air. PO Pinnisi attempted to handcuff § 87(2)(b) but he refused to be handcuffed. § 87(2)(b) kept his hands in the air.

Three or four additional officers came over to assist PO Pinnisi, trying to hold his arms and bring them down behind his back. § 87(2)(b) yelled to his family members who were at the scene, "You see,

I'm not moving. Now watch and see if anybody punches or hits me.” § 87(2)(b) asked his family members to take out their cell phone cameras and take pictures of the officers if they hit him. However, none of the officers hit § 87(2)(b) or used excessive physical force against him. After about ten minutes, § 87(2)(b) put his hands down and placed them behind his back. He allowed himself to be handcuffed. The officers then escorted § 87(2)(b) inside the precinct. One of the officers with whom § 87(2)(b) interacted earlier regarding his daughter's release approached and ask him what had happened. § 87(2)(b) told this officer to ask PO Pinnisi, who decided to arrest him. After approximately 10 minutes, PO Pinnisi approached § 87(2)(b) and removed his handcuffs. He told § 87(2)(b) that he was going to issue him a summons for § 87(2)(b). Five minutes later, PO Pinnisi went over to the vending machine, purchased a bottle of water, and gave it to § 87(2)(b). § 87(2)(b)'s daughter was released to his custody five minutes later and he was given a summons by PO Pinnisi for § 87(2)(b).

At that point, § 87(2)(b) took his daughter to § 87(2)(b).
§ 87(2)(b) did not have to return to the hospital for any subsequent treatment. § 87(2)(b) stated that he is not complaining about his own interaction with police officers “at all,” and is only upset about what happened with his daughter. He does not have any complaints against the officers whom he encountered.

Attempts to Contact Additional Witnesses/Victims (Enclosures 25A-N)

§ 87(2)(b) made allegations on behalf of her friend, § 87(2)(b) stating that PO Quinzi called him a jackass. She stated that her friends, § 87(2)(b) (last name unknown), and “§ 87(2)(b)” were witnesses to the incident. § 87(2)(b) provided a telephone number for § 87(2)(b) but did not have any contact information for § 87(2)(b) or “§ 87(2)(b)”. She stated that she could provide that information to the CCRB in the future but she failed to do so. Attempts were made at contacting § 87(2)(b). On August 21, 2007, the investigator contacted § 87(2)(b) and left him a please call voicemail. On August 22, 2007, the investigator called § 87(2)(b) again, at which time he provided a brief telephone statement. § 87(2)(b) added that he was interested in providing a CCRB statement and would call back to schedule an appointment. He also provided contact telephone numbers for § 87(2)(b) and § 87(2)(b). On August 22, 2007, an attempt was made at contacting § 87(2)(b) and a please call voicemail was left for him. On the same date, an attempt was made at contacting § 87(2)(b) but the number was continuously busy. On August 29, 2007, the investigator called § 87(2)(b) and left him a please call voicemail. On the same date, the investigator attempted to contact § 87(2)(b) however, a female answered the phone and stated that the investigator had the wrong number. Also on August 29, 2007, the investigator attempted to contact § 87(2)(b). He was not home and an unidentified male took a message. On September 11, 2007, the investigator attempted to contact § 87(2)(b). § 87(2)(b) answered the phone, but he either hung up the phone or the call was lost. The investigator made another call to § 87(2)(b) immediately thereafter, and a please call voicemail was left for him. On September 12, 2007, the investigator attempted to contact § 87(2)(b) again, but he was not home and his mother took a message for him. On October 3, 2007, the investigator made final attempts at contacting § 87(2)(b) and § 87(2)(b). A please call voicemail was left for § 87(2)(b) and a message was left for § 87(2)(b) with an unidentified female.

Officer Interviews

Police Officer Vincenzo Quinzi (Enclosures 8A-D, 9A-C)

Police Officer Vincenzo Quinzi, a § 87(2)(b)-old white male, was interviewed at the CCRB on November 14, 2007. PO Quinzi stated that on August 3, 2007, he worked a tour of 1500 by 2335 hours and was assigned as ‘Critical response detail’ for the 60th Precinct. His partner on the date of this incident was PO Olive Houston; however, she was not with him when he responded to the incident. PO Quinzi and his partner were both dressed in uniform and were assigned to a marked RMP, # 2286, in which he was the operator. PO Quinzi had entries in his memo book pertaining to this incident, which he read verbatim for the record as: “2230, respond to 85 Surf Avenue, Stillwell, 85 changed to Reagleman Boardwalk & Stillwell, A/O was dispersing crowd. A/O approach a male juvi. who was screaming, shouting, cursing. A/O requested juvi. to stop being disorderly when a female juvi. came directly into A/O face, cursing & shouting at A/O, stating to get out of here. A/O requested female juvi. for her name, juvi. failed to comply, still cursing at

A/O, A/O requested female juvi. for her age, juvi. still fail to comply by cursing & shouting at A/O. At this point, female juvi. was blocking A/O and was acting disorderly by cursing and screaming at A/O causing alarm in the view of the public. A/O then requested juvi. to turn around, juvi. still would not comply. Several officers were trying to detain juvi., juvi. resisted by swinging at police officers. Once juvi. was detained A/O handcuff juvi. and was brought back to 60 PCT while juvi. was still failing to comply with A/O orders. Juvi. was known as § 87(2)(b). While juvi. was detained at 60 PCT a male named § 87(2)(b) who is juvi. father came into 60 PCT acting disorderly by screaming & cursing at officers trying to make his way through police officers to see his daughter. Juvi. father was arrested for § 87(2)(b) but was later released with C summons; 2345, call juvi. desk, talk to Det. O'Mara, log # 2007-7477, order to release to father; 0015, juvi. was released to father and juvi. report was prepared."

On August 3, 2007 at approximately 10:30pm, PO Quinzi was at the 60th Precinct when a call came over requesting an '85' for a fight in progress at Stillwell and Surf Avenues. PO Quinzi left the stationhouse by himself and was not accompanied by his partner. As he was traveling there, the address of the location was changed to the boardwalk, and PO Quinzi responded there. It took PO Quinzi approximately a minute to arrive at the location. When he arrived, PO Quinzi observed a large crowd gathered because a fight had broken out. PO Quinzi stated that there were hundreds of people on the boardwalk at this time, given that it was Coney Island during the summertime. He explained that there are additional detail officers who are assigned to the 60th Precinct for the summertime from all different commands, so he is not familiar with all of the officers assigned there. By the time he arrived at the scene, the fight had already been broken up and the individuals fighting had been separated but there was still a crowd of onlookers present. PO Quinzi did not have any involvement in breaking up the fight. PO Quinzi began attempting to disperse the crowd when he came across a group of kids yelling. One male juvenile in particular began screaming and cursing. PO Quinzi believed that the male was directing his remarks toward him; the male seemed to be "trying to get my attention to see if I would say something," according to PO Quinzi. § 87(2)(b) who was identified later by PO Quinzi because she was arrested, was also among this group of kids. PO Quinzi believed that § 87(2)(b) was about 18 or 19 years old. PO Quinzi could not estimate how large this group of kids was because there were so many kids around and he could not tell who was friends with whom. PO Quinzi asked the male to stop what he was doing, and the male complied. At this point, § 87(2)(b) approached PO Quinzi and came directly into his face, about two to three inches from his face, out of nowhere. § 87(2)(b) began screaming at PO Quinzi, saying things such as, "Fucking pigs, get out of my face," and, "Get the fuck out of here," and things of that nature. PO Quinzi told § 87(2)(b) to stop and told her that the situation had nothing to do with her. PO Quinzi continued trying to walk past and disperse the crowd but § 87(2)(b) stood blocking his path and prevented him from going around her. She repeatedly moved around and deliberately stood in PO Quinzi's way to block him from going around her. In addition to acting disorderly, § 87(2)(b) was obstructing what PO Quinzi was trying to do and was OGA. She also continued yelling at PO Quinzi, calling him a pig and telling him that she knew her rights. PO Quinzi stated that at this point § 87(2)(b) was acting aggressively but she did not attempt to strike him. PO Quinzi believed that § 87(2)(b) was "trying to impress her friends." PO Quinzi again told § 87(2)(b) to stop, and she ignored his request.

PO Quinzi asked § 87(2)(b) for her name and she refused to provide it. He asked for her age and she also refused to provide it. § 87(2)(b) responded to PO Quinzi's requests by saying, "Fuck you." She pointed in PO Quinzi's face and said, "Get the fuck out of my face." § 87(2)(b) continued acting disorderly and yelling. PO Quinzi stated that there were "so many cops and so many people" in the surrounding area, and he could not say whether anyone stopped to watch what was transpiring between him and § 87(2)(b). PO Quinzi's attention was focused on § 87(2)(b) and he could not say what her friends were doing during this time. After numerous requests and because § 87(2)(b) continuously failed to comply with his orders and was acting aggressively, PO Quinzi made the decision to place § 87(2)(b) under arrest. He instructed § 87(2)(b) to turn around and she did not comply. Rather, she put her hands up and closed her fists, "like she wanted to fight." She never swung at PO Quinzi, because at this point, other officers who apparently observed what was taking place came to PO Quinzi's aid and grabbed her. One officer grabbed one arm, and then § 87(2)(b) then began swinging and trying to fight off the police officers. Another officer then grabbed § 87(2)(b)'s other arm. At this point, § 87(2)(b) began kicking her legs; PO Quinzi could not see if § 87(2)(b) actually made contact with anyone while she was kicking. PO Quinzi stated that the officers involved were "mainly summer detail guys" and he was not very familiar with them and could not

recall officers' names. He believed that PO Joseph Flynn may have assisted. When asked, PO Quinzi confirmed that PO Drone was also at the scene and was standing to PO Quinzi's right, but he could not recall his role in the incident. PO Quinzi could not recall if any Sergeants were at the scene. PO Quinzi estimated that approximately 7 officers attempted to restrain § 87(2)(b). The officers were "huddled" around § 87(2)(b) at this point and PO Quinzi was unable to see what was going on. When asked, PO Quinzi stated that he believed that § 87(2)(b) may have attempted to make a phone call on her cell phone because he heard an officer saying, "Why are you going in your pocket?" § 87(2)(b) responded by saying that she was trying to get to her cell phone. PO Quinzi stated that from everything he observed, the officers handled the situation with § 87(2)(b) in a "professional manner." § 87(2)(b) ended up on the ground, but PO Quinzi could not see how she ended up down there because there were officers standing around § 87(2)(b) obstructing his view of her. Once the officers had § 87(2)(b) restrained on the ground, PO Quinzi placed her into handcuffs. He stated that he had no physical contact with § 87(2)(b) prior to this point, and this was the only physical contact he had with her. PO Quinzi could not recall how § 87(2)(b) was positioned on the ground, but he had to turn her to one side in order to handcuff her. He did not see any officers place their knees on § 87(2)(b)'s head. At this point, she was still struggling with the officers who were holding her down. PO Quinzi estimated that § 87(2)(b) fought with the officers for "about a minute" before she was actually restrained and handcuffed. PO Quinzi did not believe any onlookers attempted to intervene in what was going on. PO Quinzi did not notice whether § 87(2)(b) had any injuries once she was removed from the ground and he did not hear her express that she had sustained any injury. PO Quinzi was not aware of any additional summonses issued or arrests made in connection with this incident. The only paperwork PO Quinzi filled out was a juvenile report for § 87(2)(b). To PO Quinzi's knowledge, no officers were injured in connection with the incident. No Sergeant arrived at the scene to verify the arrest. PO Quinzi estimated that the entire incident on the boardwalk was approximately 10 minutes long.

PO Quinzi could not recall who transported § 87(2)(b) but he did not do so. He stated that there were numerous police officers on scene and he could not recall what happened with § 87(2)(b) at that point. PO Quinzi went back to the 60th Precinct, and § 87(2)(b) was already there. § 87(2)(b) still initially failed to comply with PO Quinzi; she refused to provide him with her name and was being difficult. Finally, after speaking with a couple of officers, § 87(2)(b) she relented and provided her information to PO Quinzi. PO Quinzi was not aware of any strip-search occurring at the 60th Precinct. He stated that as her arresting officer, PO Quinzi would know if a strip-search occurred. The desk officer would also be aware and would authorize such a search. PO Quinzi stated that no strip-search was authorized or conducted. PO Quinzi stated that he was not sure which Sergeant would have been his supervisor at the time because earlier on that date, he had worked a special detail in Manhattan. He also did not know which officer was working the desk at this time. PO Quinzi did not suspect that § 87(2)(b) was in possession of any narcotics, but the thought that she and her friends were drinking had crossed his mind. However, there was not really any indication that § 87(2)(b) or her friends had been drinking.

At the precinct, PO Quinzi noticed that § 87(2)(b) had a scrape on her forehead. He was not sure how she sustained this injury and he did not notice it until he saw § 87(2)(b) at the stationhouse. § 87(2)(b)'s father, § 87(2)(b) arrived at the 60th Precinct later to see what was going on with § 87(2)(b). § 87(2)(b) was acting "very disorderly;" he demanded to see his daughter but officers at the stationhouse informed him that he would have to wait until she was released. § 87(2)(b) attempted to break through the officers to go and see his daughter. As a result, § 87(2)(b) was arrested for § 87(2)(b). PO Quinzi did not have any interaction with § 87(2)(b) until the point when § 87(2)(b) was released to him; he did not know that he was § 87(2)(b)'s father until later when he was instructed to release § 87(2)(b) to § 87(2)(b).

PO Quinzi stated that he never used any profanity toward § 87(2)(b) or toward any of her friends. He did not hear any other officers use profanity toward § 87(2)(b).

Police Officer Frederick Drone (Enclosures 12A-B, 13A-C)

Police Officer Frederick Drone was interviewed at the CCRB on December 10, 2007. On August 3, 2007, PO Drone worked a tour of 4pm to 12am and was assigned as Sector D for the 60th Precinct. He was partnered with PO Flynn, and the officers were both in uniforms. The officers were assigned to a marked

motor vehicle, # 2623. PO Drone had entries in his memo book pertaining to the incident, which he read verbatim for the record as: “2245, 85 @ Stillwell & R. Boardwalk by detail portable; 2250, assisted summer detail port. In removing disorderly female juvenile from bdwlk., juvenile female obstructing officers from exiting bdwlk., screaming obscenities causing crowd to form. When ordered to leave bdwlk. female became violent, attempted to punch officers and was restrained; 2255, female under by summer detail; 2256 transport juvenile female to 60 PCT; 2300, female juvenile out of auto @ 60 PCT.”

PO Drone stated that at 2245 hours on August 3, 2007, he and his partner responded to an ‘85’ at the boardwalk at Stillwell Avenue at Coney Island. PO Drone could not recall the details of the initial ‘85.’ He and PO Flynn responded to the boardwalk, and PO Drone observed hundreds of people in the area. The area was “clearing” and people were dispersing. PO Drone did not know which “bosses” were on scene; he explained that they may have been from other commands for the summer detail. He could not recall who his own supervisor was on that night. PO Drone’s and PO Flynn’s vehicle was located on the south side of Stillwell Avenue right next to the boardwalk (which is why they were the officers to later transport § 87(2)(b) to the 60th Precinct). The officers walked back toward their vehicle when PO Drone heard a “commotion” behind him. A female, later identified as § 87(2)(b) was acting “very disorderly;” she was waving her arms around while screaming and cursing. A photo of § 87(2)(b) was presented to PO Drone, and he stated that he “vaguely” recognized her. § 87(2)(b) “might have been” with other friends, but PO Drone could not tell because there were so many people on the boardwalk at that time. PO Drone could not tell whether § 87(2)(b) was under the influence of alcohol or another substance because he was not close enough to her to really be able to tell either way. She yelled at PO Quinzi and the officers standing around, “I don’t have to listen to you,” and, “I don’t have to do what you tell me, I know my rights.” § 87(2)(b) also was yelling obscenities, but PO Drone could not recall specifically what she said. People began gathering around what was going on and watched. PO Quinzi was trying to walk around § 87(2)(b) to exit the boardwalk, and the exit is fairly narrow (he could not estimate how wide). § 87(2)(b) stood in front of the exit, blocking PO Quinzi’s path and preventing him from leaving. Other officers who walked behind PO Quinzi also could not get by. She physically moved her body to block the officers from walking past. PO Drone could not recall and was not familiar with many of the officers on scene; he explained that Coney Island is a summer detail and there are officers from various commands assigned there. PO Quinzi asked § 87(2)(b) to leave several times. PO Quinzi was the officer who mainly interacted with § 87(2)(b). PO Quinzi did not use any profanity toward § 87(2)(b) or anyone else. PO Drone and PO Flynn were standing within about twenty feet from PO Quinzi and § 87(2)(b).

PO Quinzi continued telling § 87(2)(b) to leave and when she refused, he took out his handcuffs to place her under arrest. At this point, § 87(2)(b) became violent and attempted to punch PO Quinzi. PO Drone could not estimate how far he and his partner were from this, but they were approaching PO Quinzi and § 87(2)(b). PO Drone was behind PO Quinzi and § 87(2)(b) and their backs were to him. When he got closer, he saw that additional officers had surrounded the two and were trying to restrain § 87(2)(b). He did not know which officers these were and could not estimate how many got involved because there were “a lot” of officers in the area. § 87(2)(b) continued fighting with the officers and tried to punch the officers as they attempted to restrain her. PO Drone did not recall any other civilians trying to get involved. He did not see § 87(2)(b) attempt to make any cell phone calls while being restrained. He could not tell whether § 87(2)(b) struck PO Quinzi or any other officer. PO Drone did not remember seeing § 87(2)(b) on the ground at any point, and he did not see any officers with their knees on § 87(2)(b)’s head or back. His view was obstructed at times because of the number of people and officers in the area. However, he was able to see PO Quinzi handcuff § 87(2)(b) after she was quickly restrained. Additional unknown officers may have been doing crowd control as this was going on. PO Drone did not hear any officers using any profanity.

PO Drone did not see § 87(2)(b) with any visible injuries. He did not hear her complain of any injuries. He did not notice her clothes being ripped. Neither PO Drone nor his partner had any physical contact with § 87(2)(b) other than when they escorted her to their RMP to transport her. PO Drone was not sure if any officers were injured as a result of this incident. PO Drone stated that during the transport to the 60th Precinct, § 87(2)(b) did not really calm down. She continued cursing and was “ranting and raving about all kinds of stuff.” However, she did comply with getting into the vehicle. PO Drone did not recall specifically what § 87(2)(b) was saying because he explained that he “tends to just tune it out.” PO

Drone described § 87(2)(b)'s behavior throughout the incident as erratic and violent. He did not notice that she had any visible injuries or if she was bleeding during the transport, and § 87(2)(b) did not express that she had sustained any injury. Once the officers transported § 87(2)(b) they went '98' after that and resumed patrol. He could not estimate how long he was at the stationhouse. He did not know if EMS ever arrived at the stationhouse. PO Drone did not have any subsequent interaction with § 87(2)(b). PO Drone did not know if § 87(2)(b)'s father arrived at the stationhouse. PO Drone was not aware if any one else at the scene was summonsed or arrested. He was not aware of § 87(2)(b) being strip-searched.

Police Officer Joseph Flynn (Enclosures 16A-C, 17A-C)

Police Officer Joseph Flynn was interviewed at the CCRB on February 21, 2008. PO Flynn stated that on August 3, 2007, he worked a tour of 1500 by 2335 hours and was assigned as sector DEF with PO Drone. PO Flynn was dressed in uniform and was assigned to a marked RMP, # 2623, of which PO Drone was the operator. PO Flynn had entries in his memo book regarding this incident, which he read verbatim for the record as: "2245, 10-85 @ Stillwell & Bdwlk for s.d. portable; 2250, assisted summer detail portable in removing female juvenile from bdwlk. Female obstructed officers from exiting bdwlk., screamed obscenities which caused a crowd to form & when ordered to leave the bdwalk, female became violent, attempting to punch officers & was restrained; 2255, female under by summer detail; 2256, transport juvi to 60 PCT; 2300, female juvi out of auto; 2315, father of juvi removed from PCT after causing dangerous situation by attempting to climb through T.S. window & screaming obscenities."

PO Flynn stated that on August 3, 2007 at approximately 10:45pm, he and his partner PO Drone responded to Stillwell Avenue and the boardwalk because they received an '85' from the boardwalk because there was a fight taking place. PO Flynn could not recall specifically where he and his partner were when they received the '85' and he was not sure how long it took for him and his partner to arrive at the location. By the time they arrived at the location, the fight had been broken up and a summer detail sergeant who was on the scene told the officers that they could resume patrol because they were not needed. PO Drone estimated that he and his partner were on the boardwalk for a couple of minutes before they started to leave. PO Drone did not recall which sergeant was on scene and gave him the instruction to leave.

PO Flynn and PO Drone walked off the boardwalk, down either steps or a ramp (he could not recall), toward their patrol car. As PO Flynn and PO Drone were about to get into their vehicle, they heard "screaming and noise" which he described as loud voices and cursing. PO Flynn and PO Drone turned and walked back toward the boardwalk to see what was going on. At this point, PO Flynn saw a female, later identified as § 87(2)(b) standing with her back facing PO Flynn and PO Drone. PO Flynn viewed a photograph of § 87(2)(b) and he confirmed that he recalled the same individual and incident. § 87(2)(b) was facing summer detail officers and appeared to be with a group of people, but he could not estimate the size of the group. He remembered that the group was composed of young kids. PO Flynn saw the summer detail officers instructing the female and her friends to move because they were blocking the boardwalk's exit. PO Flynn could not recall whether the exit was a staircase or a ramp. The officers instructed § 87(2)(b) to move 2-3 times, but she ignored the officers and continued screaming and cursing at them. He could not recall specifically what § 87(2)(b) was saying. PO Flynn was not sure if § 87(2)(b)'s group of friends were also screaming at the officers; he stated that there were "a lot of people" on the boardwalk at this time. PO Flynn estimated that he was standing about 15 feet from § 87(2)(b) and the officers with whom she was interacting. PO Flynn did not recall specifically which or how many summer detail officers were dealing with § 87(2)(b). He stated that there were several officers in the vicinity because of the '85' that had come over.

After the officers requested that § 87(2)(b) move (2-3 times), § 87(2)(b) took a swing in their direction. PO Flynn was not sure who specifically § 87(2)(b) swung at or if she actually struck anyone. The summer detail officers then grabbed onto § 87(2)(b) and took her to the ground. PO Flynn could not recall how § 87(2)(b) landed on the ground; he stated that there were numerous people in between him and where this was taking place, and his vision was obstructed. § 87(2)(b) continued struggling with the officers, and some of them also fell to the ground. § 87(2)(b) was then handcuffed (PO Flynn could not tell by whom), picked up, and walked off the boardwalk toward PO Flynn and PO Drone. PO Flynn never saw officers with their knees on § 87(2)(b)'s head or back. PO Flynn stated that it did not take the officers "very long at all" to restrain § 87(2)(b) and they were able to do so quickly. The summer detail

officers walked § 87(2)(b) toward PO Flynn's RMP while PO Flynn and PO Drone did crowd control. PO Flynn stated that he and his partner transported § 87(2)(b) because they were one of the only sector non-summer detail units on the scene and they had a cage car. PO Flynn did not recall any interaction between § 87(2)(b)'s group of friends and the officers. PO Flynn believed that there may have been other supervising officers on the scene, but they were summer detail and he did not recall who.

PO Flynn could not recall whether § 87(2)(b) was injured when she was brought over to him and PO Drone. She did not complain of any injuries to PO Flynn. § 87(2)(b) was still irate initially, but by the time the group arrived at the 60th Precinct, she had calmed down. The only physical contact PO Flynn had with § 87(2)(b) was escorting her from his vehicle into the 60th Precinct. PO Flynn did not have much interaction with § 87(2)(b) at the stationhouse; "within a minute" the summer detail officers arrived at the stationhouse and PO Flynn and PO Drone went '98' from there. PO Flynn had not recognized § 87(2)(b) from any prior interaction. PO Flynn was not aware of any strip-search conducted on § 87(2)(b) at the 60th Precinct. He has never conducted or observed a strip-search, and he would remember a strip-search if it occurred. PO Flynn did not use any profanity and did not hear any officers using profanity toward § 87(2)(b) call her or any individual a "jackass," or say "who the fuck do you think you are." PO Flynn recalled that PO Quinzi was on the scene, but that was the only officer he recognized. PO Flynn viewed a photo of § 87(2)(b) again, which showed a scar on her head; PO Flynn stated that he realized § 87(2)(b) had been injured at the stationhouse. He did not see how the injury had been sustained and did not know she had it until he was in a lighted area with § 87(2)(b). § 87(2)(b) did not ask for medical attention at that point either. He did not notice that any of her clothing was ripped.

PO Flynn stated that as he was exiting the stationhouse to resume patrol, he saw that § 87(2)(b)'s father had arrived and was being removed from the stationhouse. PO Flynn was later informed that § 87(2)(b)'s father had tried to climb through the telephone switchboard operator's window, and officers removed him from the stationhouse. PO Flynn briefly saw § 87(2)(b)'s father, and he was "very irate" and screaming.

At the conclusion of the interview, the roll call was displayed for PO Flynn. However, this did not help him to remember the officers who were on the scene. He could not recall if Sgt. Brown was on the scene and he was not familiar with the supervisors who responded to the scene.

Sergeant Beverly Brown (Enclosures 14A-C, 15A-B)

Sergeant Beverly Brown was interviewed at the CCRB on February 13, 2008. On August 3, 2007, Sgt. Brown worked a tour of 1715 by 0205 hours and was assigned as the patrol supervisor. Her partner was PO Qureshi and she was dressed in uniform. She was assigned to a marked van, # 5809. Sgt. Brown had entries in her memo book regarding this incident, which she read verbatim for the record as: "2203, post 6, 4 under, 10-31 at W. 16th & Bdwk., § 87(2)(b) juvenile reports prep."

Sgt. Brown stated that on August 3, 2007 at approximately 10pm, she and her partner received a call for an '85' on the Boardwalk at Coney Island. She could not recall specifically where she was when she received the call and she could not recall how long it took for her to respond to the location. Sgt. Brown could not recall any details regarding why the '85' was put over. Sgt. Brown and her driver, PO Qureshi, as well as additional officers responded to West 16th Street and the boardwalk. Sgt. Brown stated that location is "a block or two" from Stillwell Avenue. When she first arrived, she saw several officers running toward the boardwalk. Sgt. Brown and PO Qureshi exited their vehicle and walked in the direction of the incident. On the boardwalk, Sgt. Brown observed that there were two incidents occurring simultaneously at the location. She saw that officers had one person stopped, but she did not know the details of that incident. When she arrived, everything had calmed down and seemed under control, so she and her partner began walking away. As she walked away, she observed PO Quinzi and additional officers "sort of fighting" with § 87(2)(b). A photograph of § 87(2)(b) was displayed for Sgt. Brown during the interview, and she stated that she recognized § 87(2)(b). § 87(2)(b) appeared to be alone at the time of the incident. Sgt. Brown's attention was drawn to § 87(2)(b) because officers were "sort of wrestling" with her and attempting to get her under control, and she was fighting them. § 87(2)(b) was on the ground when Sgt. Brown first observed her and she did not witness how § 87(2)(b) got to the ground because she had her back turned to her. Sgt. Brown believed that § 87(2)(b) was laying flat on the ground, face-down.

Sgt. Brown estimated that she was 15-20 feet away from where the officers were dealing with § 87(2)(b) and at certain points, her view of the officers and § 87(2)(b) was obstructed because there were many officers and civilians in the area. From that distance, Sgt. Brown could hear § 87(2)(b) yelling and cursing at the officers. Sgt. Brown also saw that § 87(2)(b) was moving her arms around and resisting being handcuffed. Sgt. Brown could not recall where PO Quinzi was exactly, whether he was on the ground or not, and where he may have held onto § 87(2)(b)'s body. She stated that there were 3-4 officers, and she was not sure if it was PO Quinzi who was trying to get control of § 87(2)(b)'s arms. She did not recall if any of the officers involved in the incident were from her command. She was unable to see which officers actually handcuffed § 87(2)(b). Sgt. Brown did not observe any officer hit or kick § 87(2)(b) and from what she saw the officers did not use any excessive force with § 87(2)(b). She did not see any officer with his or her knee on § 87(2)(b)'s head. The officers then picked § 87(2)(b) up from off the ground. Sgt. Brown recalled that § 87(2)(b) might have had "a scratch or two" on her face. She did not notice whether § 87(2)(b)'s clothes were ripped. She did not see § 87(2)(b) reaching for or talking on a cell phone at any point. When the officers stood § 87(2)(b) up, she was still fighting with the officers; she was moving her arms around and continued cursing at the officers. At no point did Sgt. Brown hear any officer using profanity toward § 87(2)(b).

§ 87(2)(b) was then escorted to a patrol car and taken to the precinct. She was not sure if PO Quinzi placed § 87(2)(b) in a car and she did not know who transported § 87(2)(b). Sgt. Brown believed that the incident was no more than 10-15 minutes. She was not sure how long she remained at the location before resuming patrol with her partner, but she believed it was not long after § 87(2)(b) was removed from the scene. Sgt. Brown never heard § 87(2)(b) request medical attention on the scene. Sgt. Brown did not have any verbal or physical interaction with § 87(2)(b).

Sgt. Brown did not return to the stationhouse after the incident; she resumed patrol and her tour ended at 2am. Sgt. Brown was then presented with a photograph of § 87(2)(b) but Sgt. Brown did not recognize him and did not recall him going to the stationhouse. Sgt. Brown believed that she returned to the 60th Precinct at some point before her tour ended, but she did not know what time. She had no interaction with § 87(2)(b) at the stationhouse. To Sgt. Brown's knowledge, § 87(2)(b) was not strip-searched. Sgt. Brown stated that she never strip-searches anyone; when asked if she is involved in strip-searches, Sgt. Brown stated "not at all." She stated that since she never conducts strip-searches, she would definitely remember if she strip-searched § 87(2)(b) or observed any strip-search. Had a strip-search occurred, the desk officer would have been the individual to authorize it and it should be noted in the command log. At the conclusion of the interview, the roll call was displayed for Sgt. Brown; however, she could not recall which officers may have assisted PO Quinzi in subduing § 87(2)(b).

Police Officer Olive Houston (Enclosures 10A-B, 11A-B)

Police Officer Olive Houston, a § 87(2)(b) old black female, was interviewed at the CCRB on November 15, 2007. On August 3, 2007, PO Houston worked a tour of 1500 by 2335 hours and was assigned as Critical Response for the 60th Precinct. She sometimes works Critical Response during the summertime. She was working with PO Quinzi and the two were dressed in uniform. PO Houston does not typically work with PO Quinzi; she believed that his partner was out on the incident date. She does not have a steady partner. The officers were assigned to RMP # 2286, which PO Houston described as a marked car. PO Houston did not have any memo book entries pertaining to this incident, and she did not have an independent recollection of the incident.

PO Houston was then informed about some of the details of the incident; specifically, she was told that PO Quinzi made an arrest on that date of juvenile § 87(2)(b) on the Coney Island Boardwalk at approximately 10:30pm after responding to a fight at the location. A photo of § 87(2)(b) was then presented to PO Houston, but she did not recognize § 87(2)(b) and did not recall ever interacting with her. PO Houston offered that she was working a Critical Response detail for the 60th Precinct in Manhattan on August 3, 2007. She believed that she and her partner were in Manhattan until her end of tour, which was 2335 hours. PO Houston was at 34th Street and 1st Avenue in Manhattan at 1600 hours and was then at a post at Union Square at 1645 hours. She was at various locations in Manhattan and at 1900 she and her partner were on meal. Her end of tour was 2335. PO Houston believed that she was with PO Quinzi during each of her post changes and she recalled that she was with him during her entire tour. She recalled

going back to the 60th Precinct at the very end of her tour; however, she did not recall specifically what time she was there but she did sign out for her end of tour. PO Houston did not recall how long she was at the precinct; she stated it may have been about half an hour. She did not recall any calls coming in while she was at the precinct that PO Quinzi may have responded to. A photo of § 87(2)(b) was then presented for PO Houston, and she was informed that § 87(2)(b) was arrested at the precinct subsequent to his daughter's arrest and was released with a § 87(2)(b) summons. PO Houston did not recognize § 87(2)(b). PO Houston did not recall conducting any strip-searches at the 60th Precinct on August 3, 2007 and she did not recall if any strip-searches were conducted. In her normal duties, PO Houston does not conduct strip-searches; if she conducted one, it would stand out in her memory. PO Houston sometimes conducts searches on females at the precinct when necessary but does not typically conduct strip-searches.

Police Documents

Communication Records (Enclosures 19A-B)

Spring job # F14843 documents a radio transmission on August 3, 2007 at 10:42pm made for a "10-68U2," or an 85-MOS/outside, at Stillwell and Surf Avenues in Brooklyn. A detail sergeant almost immediately states that there are no further units needed to respond to this dispute and then states that all MOS are accounted for with no injuries. At 10:55pm, a 60th Precinct footpost radios 2 under, and at 10:56pm, Sector D radios that they are transporting a perpetrator.

60th Precinct Roll Calls (Enclosures 20A-K, 21A-H)

The tour 3 roll call for August 3, 2007 shows that Sgt. Brown was assigned to summer detail. PO Drone and PO Flynn were assigned as sector D in vehicle # 2623. PO Quinzi and PO Houston were assigned as critical response in vehicle # 2286. The tour 1 roll call for August 4, 2007 was also obtained by the investigator because § 87(2)(b) was transported to the 60th Precinct around the time that a tour change was taking place. PO Pinnisi, the officer who issued § 87(2)(b)'s summons, was assigned as sector A in vehicle # 2135.

60th Precinct Command Log (Enclosures 22A-B)

§ 87(2)(b)'s arrest was entered into the command log and documents that she was arrested by PO Quinzi on August 3, 2007 at Stillwell Avenue and the boardwalk at 10:55pm for § 87(2)(a) FCT § 380.1 § 87(2)(b)'s condition was listed as normal, and § 87(2)(b) was released to her father § 87(2)(b) at 12:30am. It is also noted in the command log that § 87(2)(b) was arrested at 11:45pm. § 87(2)(b) was arrested by PO Pinnisi for § 87(2)(b) in front of the 60th Precinct stationhouse at 11:45pm. His condition was normal, and he was released at 12:15am with summons # § 87(2)(b).

Juvenile Report & Summons (Enclosures 23A, 24A)

§ 87(2)(a) FCT § 380.1 § 784

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Medical Records (Enclosures 18A-N)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Status of the Criminal Charges/Criminal Conviction Histories

§ 87(2)(b)

CCRB Histories

Officers (Enclosures 1A-D)

PO Vincenzo Quinzi has been a member of the NYPD for 3 years and he has no substantiated allegations in his CCRB history. Sgt. Beverly Brown has been a member of the NYPD of 11 years and she has no substantiated allegations in her CCRB history. PO Frederick Drone has been a member of the NYPD for 4 years. He has one substantiated allegation in his CCRB history for case # 200505590, in which he conducted an improper search. It was recommended that PO Drone receive a command discipline, but he received instructions from the NYPD. PO Joseph Flynn has also been a member of the NYPD for 4 years. He has one substantiated allegation in his CCRB history for case # 200505590, in which he, too, improperly searched an individual. A command discipline was recommended by the CCRB, but the NYPD gave PO Flynn instructions.

Civilians (Enclosures 2A-B)

This is the first complaint involving § 87(2)(b) and § 87(2)(b)

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified PO Vincenzo Quinzi as her arresting officer and police documents confirmed this. During his CCRB interview, PO Quinzi asserted that PO Frederick Drone was also present for the incident. PO Drone confirmed his involvement in the incident, and according to police documents, his partner was PO Joseph Flynn. § 87(2)(b) also identified PO Drone and PO Flynn when she was presented with a photo array. PO Houston was interviewed because she was assigned as PO Quinzi's partner; however, § 87(2)(b) selected Sgt. Beverly Brown as the officer who strip-searched her at the 60th Precinct.

There was a Sprint for the location but it did not indicate specifically which officers were on the scene; a request for backup had come over the radio for the location pertaining to a different incident. There were numerous foot posts on scene from various commands for the Coney Island summer detail. The officers interviewed could not identify and were not familiar with other officers who may have been on the scene. The only way to identify additional officers who may have been involved in the incident was to show § 87(2)(b) photos. However, when § 87(2)(b) viewed photos of summer detail, stadium detail, and sector patrol officers from the roll call, she could not identify any additional officers. Therefore, the other officer/officers who may have assisted in arresting § 87(2)(b) could not be identified.

Undisputed Facts

It is not in dispute that PO Quinzi, with the assistance of summer detail officers, arrested § 87(2)(b) on the Coney Island Boardwalk on August 3, 2007 at approximately 10:30pm. It is also not in dispute that during the arrest process, a struggle occurred and § 87(2)(b) ended up on the ground. § 87(2)(g)

Assessment of the Evidence

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that an officer strip-searched her at the 60th Precinct, and she identified Sgt. Beverly Brown as the subject officer in that allegation. PO Quinzi and the other officers were not aware of a strip-

search and it was not documented in the command log. Sgt. Brown stated that she is “never” involved in strip-searches and she did not strip-search § 87(2)(b) § 87(2)(g)

Allegation A: Police Officer Vincenzo Quinzi spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Quinzi called her friend, § 87(2)(b) a “jackass.” § 87(2)(b) could not provide a telephone number, address, or last name for § 87(2)(b) and the telephone number that a witness, § 87(2)(b) provided was the wrong number. § 87(2)(g) it is therefore recommended that Allegation A be closed as victim unavailable.

Allegation B: Police Officer Vincenzo Quinzi spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) claimed that PO Quinzi stated to her, “Who the fuck do you think you are?” PO Quinzi, however, denied saying this. The officers interviewed did not hear PO Quinzi say this, and the victim and witnesses in this case failed to provide statements to the CCRB. § 87(2)(g) it is therefore recommended that Allegation B be closed as unsubstantiated.

Allegation C: Police Officer Vincenzo Quinzi used physical force against § 87(2)(b)

Allegation D: Police Officer Joseph Flynn used physical force against § 87(2)(b)

Allegation E: Police Officer Frederick Drone used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Quinzi grabbed onto her arms and she attempted to pull away from him. PO Flynn, PO Drone, and possibly other officers then “jumped” on § 87(2)(b) causing her to fall face-down onto the ground. PO Quinzi stated that he had no physical contact with § 87(2)(b) and that other officers intervened when § 87(2)(b) attempted to strike him. PO Flynn and PO Drone also stated that other officers restrained § 87(2)(b) and they were not involved in subduing her. § 87(2)(g) it is therefore recommended that Allegations C, D, and E be closed as unsubstantiated.

Allegation F: Officers used physical force against § 87(2)(b)

There was no Sprint pertaining to this incident specifically and there were numerous foot posts assigned to various locations around Coney Island. According to officer statements, there were several officers already at the scene of § 87(2)(b) s arrest because a request for backup had been put over the radio for that location for a separate incident. The officers interviewed could not identify any of the other officers who may have been involved in § 87(2)(b) s arrest because there were numerous officers in the vicinity and because the officers were assigned to a summer detail and were from various commands. § 87(2)(b) could not identify any officers in addition to the ones that the investigation already identified when she viewed several photo arrays consisting of summer detail officers. It is therefore recommended that Allegation F, being pleaded against ‘Officers,’ be closed as officer unidentified.

Allegation G: Sergeant Beverly Brown strip-searched § 87(2)(b) at the 60th Precinct.

§ 87(2)(b) claimed that she was strip-searched at the 60th Precinct, and she identified Sgt. Beverly Brown as the subject of this allegation when she viewed photos. Sgt. Brown recognized § 87(2)(b) from the incident but stated that she had no interaction with her and did not conduct a strip-search. § 87(2)(g)

§ 87(2)(g) [REDACTED] it is therefore recommended that Allegation G be closed as unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: